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ANIMAL LEGAL DEFENSE FUND V. OTTER: INDUSTRIAL FOOD PRODUCTION SIMPLY IS NOT A PRIVATE MATTER

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I. INTRODUCTION

About half of the states have either passed or attempted to pass laws aimed at stifling criticism and exposure of factory farms[1] throughout the country.[2] This unwanted exposure is often the result of undercover reporters gaining access to the interior of meat-producing entities by seeking and obtaining employment.[3] Their reports often expose filthy and dangerous conditions, substantial animal abuse, and the incorporation of unfit animal products into the public's food supply.[4]

It is no wonder the owners of factory farms want to curb the public outrage that often follows these undercover exposés. However, the alarming response from farm corporations is a ubiquitous effort to stifle transparency regarding the operations going on behind their closed doors.[5] Why can the industry not admit that it needs reform? The answer, of course, is money, and lots of it. Factory farms' low-cost, high-production meat-producing strategy is highly effective at generating massive profits by externalizing

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1. *Factory Farms*, AM. SOC'Y FOR THE PREVENTION OF CRUELTY TO ANIMALS, https://www.aspca.org/animal-cruelty/factory-farms (last visited Mar. 12, 2016) ("A factory farm is a large, industrial operation that raises large numbers of animals for food. Over 99% of farm animals in the U.S. are raised in factory farms, which focus on profit and efficiency at the expense of animal welfare."); *Factory Farm*, MERRIAM-WEBSTER, http://www.merriam-webster.com/dictionary/factory%20farm (last visited Mar. 12, 2016) (defining "factory farm" as "a large, industrialized farm, especially a farm on which large numbers of livestock are raised indoors in conditions intended to maximize production at minimal cost").

2. *What Is Ag-Gag Legislation?*, AM. SOC'Y FOR THE PREVENTION OF CRUELTY TO ANIMALS, http://www.aspca.org/animal-cruelty/factory-farms/what-ag-gag-legislation (last visited Mar. 29, 2016).

3. *See* Cody Carlson, *The Ag Gag Laws: Hiding Factory Farm Abuses from Public Scrutiny*, THE ATLANTIC (Mar. 20, 2012), http://www.theatlantic.com/health/archive/2012/03/the-ag-gag-laws-hiding-factory-farm-abuses-from-public-scrutiny/254674/.

4. *Id.*

5. *See, e.g.*, CHRISTOPHER LEONARD, THE MEAT RACKET: THE SECRET TAKEOVER OF AMERICA'S FOOD BUSINESS 4 (2014) ("The first barrier to change is the fact that everything about Tyson Foods seems hidden . . . . Tyson seeks obscurity. Examining the company is all the more difficult because of the apparent code of silence of its employees, and fear of retaliation on the part of virtually anyone who works with it.").

costs onto uninformed Americans, vulnerable animals, and the global ecosystem.[6]

As state legislatures are thwarted in their attempts to create a statutory right of privacy for agricultural businesses,[7] lawmakers' efforts evolve.[8] Accordingly, these laws take various forms and are referred to by various names.[9] "Ag-gag" is the catchall nickname that seems to have gained the most notoriety[10] because the laws are intended to suppress "dialogue on issues of considerable public interest."[11] Hence, the most significant legal criticism of these laws is that they cannot be reconciled with the First Amendment.[12]

As Chief Judge Winmill said recently in the first federal district court ruling of its kind, *Animal Legal Defense Fund v. Otter*, "food production is not a private matter."[13] The activists' undercover methods "actually advance core First Amendment values by exposing misconduct to the public eye."[14] The public has a legitimate interest in knowing what goes on behind the closed doors of the meat industry.[15] *Otter* finally gives authority to what many suspected all along: ag-gag laws violate the First Amendment.[16]

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6. *See Factory Farms, supra* note 1.

7. *See, e.g.*, Matthew Shea, *Punishing Animal Rights Activists for Animal Abuse: Rapid Reporting and the New Wave of Ag-Gag Laws*, 48 COLUM. J.L. & SOC. PROBS. 337, 359 (2015) (discussing an ag-gag bill that Tennessee Governor Bill Haslam vetoed as "constitutionally suspect").

8. Rita-Marie Cain Reid & Amber L. Kingery, *Putting a Gag on Farm Whistleblowers: The Right to Lie and the Right to Remain Silent Confront State Agricultural Protectionism*, 11 J. FOOD L. & POL'Y 31, 37-38 (2015).

9. Kevin C. Adam, *Shooting the Messenger: A Common-Sense Analysis of State "Ag-Gag" Legislation Under the First Amendment*, 45 SUFFOLK U. L. REV. 1129, 1131 (2012) (explaining that Mark Bittman, of the New York Times, coined the term "ag-gag" laws).

10. *Id.*

11. *Exposing Abuse on the Factory Farm*, N.Y. TIMES (Aug. 8, 2015), http://www.nytimes.com/2015/08/09/opinion/sunday/exposing-abuse-on-the-factory-farm.html?_r=0.

12. *Id.*

13. Animal Legal Def. Fund v. Otter, 118 F. Supp. 3d 1195, 1208 (D. Idaho 2015), *appeal filed* (9th Cir. Dec. 14, 2015).

14. *Id.* at 1204.

15. *Exposing Abuse on the Factory Farm, supra* note 11.

16. *See* Jessalee Landfried, *Bound & Gagged: Potential First Amendment Challenges to "Ag-Gag" Laws*, 23 DUKE ENVTL. L. & POL'Y F. 377, 403 (2013) ("There is some hope that these laws can be challenged under the First Amendment, but in truth, the constitutional defenses against the bills are not as strong as some opponents suggest—particularly for the agricultural-fraud bills that are emerging as the most successful approach.").

This article analyzes the two competing interests that square off in suits challenging the legality of ag-gag laws. In one corner of the ring are interest groups clinging to a First Amendment right to deliver a message often procured through surreptitious tactics. In the other corner are agricultural entities, backed by authority of their states, advocating a statutory right to privacy for the inner workings of their businesses. After *Otter*, the idea that the privacy interest of the meat industry must yield to the First Amendment rights of interested citizens is stronger than ever. However, the *Otter* opinion gives minimal attention to the degree to which a corporation or other artificial entity enjoys a legitimate right to privacy. Certainly, statutorily derived privacy rights must yield to legitimate First Amendment rights; however, this article asserts furthermore that any potential privacy claims asserted by food producers, even those claims that may be constitutionally derived, must also yield to the First Amendment. Why? Because privacy is intended to protect natural humans, not artificial entities, and because food production simply is not a private matter.

In addition to demonstrating that Idaho's ag-gag statute violates the First Amendment, *Otter* also demonstrates that any limited right to privacy claimed by meat-producing companies is necessarily outweighed by the public's right to know about matters of legitimate public interest.[17] These two concepts, the First Amendment and privacy rights, are important countervailing considerations because the First Amendment protects not only the right to speak, but the right to listen, or the right to know, as well.[18] Indeed, listeners' rights are often considered paramount under the First Amendment because free speech is designed to allow the public access to information.[19] Although these factory farms may operate on private property, they implicate so many issues of public concern that no reasonable expectation of privacy can follow.[20] Under the First Amendment, the right

17. *Otter*, 118 F. Supp. 3d at 1207.

18. Eric B. Easton, *Annotating the News: Mitigating the Effects of Media Convergence and Consolidation*, 23 U. ARK. LITTLE ROCK L. REV. 143, 159 (2000) (discussing precedential cases and explaining that "the notion that a First Amendment right to know exists independently of the right to speak is supported by more than obiter dicta").

19. Red Lion Broad. Co. v. FCC, 395 U.S. 367, 390 (1969) (stating "[i]t is the right of the viewers and listeners, not the right of the broadcasters, which is paramount . . . [and i]t is the right of the public to receive suitable access to social, political, esthetic, moral, and other ideas and experiences which is crucial here").

20. *See, e.g.*, Beckett v. Serpas, 12-1349, p. 5 (La. App. 4 Cir. 3/20/13); 112 So. 3d 348, 352 ("The right to privacy is not absolute; it is qualified by the rights of others, and it is also limited by society's right to be informed about legitimate subjects of public interest.").

to privacy, especially that of an artificial business entity, must end where the right to know begins.

To examine this idea more closely, this article will explain the interests at stake in the ag-gag controversy, the development of ag-gag legislation leading up to *Otter*, and the *Otter* holdings as they relate to the public's right to know. Next, this article will analyze the history and tradition of privacy rights generally and the extent of those rights for artificial entities to arrive at this article's thesis: the companies at issue in ag-gag battles, due to their status as artificial entities, have such an attenuated right to privacy (if any at all) that their right to privacy regarding matters of legitimate public interest will practically always be outweighed by the public's First Amendment right to know.[21]

II. BACKGROUND

A. *The Competing Interests at Stake*

1. Privacy Rights for Agricultural Business Entities

Factory farms have become the dominant method of food production in America.[22] The U.S. meat industry is a multi-billion dollar per year industry, feeding millions of people around the globe.[23] In 2014, the U.S. meat industry, which processes cattle, sheep, pigs, chickens, and turkeys, sold 186 billion dollars' worth of meat.[24] In 2013 alone, the industry slaughtered 33.2 million cattle, 2.3 million sheep and lambs, 112 million pigs, 8.6 billion chickens, and 239.4 million turkeys.[25] That is nearly 9 billion animals slaughtered in one year, not including the vast numbers of casualties of the meat processing industry.[26] With such huge profits hanging

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21. *Id.*

22. Adam, *supra* note 9, at 1144; FARM FORWARD, *Ending Factory Farming*, https://farmforward.com/ending-factory-farming/ (last visited Mar. 12, 2016) (stating that USDA data from its 2002 Census of Agriculture estimates that ninety-nine percent of animals in the United States are raised and slaughtered in factory farms).

23. Sonci Kingery, *The Agricultural Iron Curtain: Ag Gag Legislation and the Threat to Free Speech, Food Safety, and Animal Welfare*, 17 DRAKE J. AGRIC. L. 645, 646 & n.6, 680 (2012) (showing that the beef and pork industries alone made a gross income of over eighty-five billion dollars collectively).

24. *The United States Meat Industry at a Glance*, N. AM. MEAT INST., https://www.meatinstitute.org/ht/display/ShowPage/id/47465/pid/47465 (last visited Mar. 12, 2016).

25. *Id.*

26. *Hatchery Horrors: The Egg Industry's Tiniest Victims*, MERCY FOR ANIMALS, http://hatchery.mercyforanimals.org/ (last visited Mar. 12, 2016) (explaining that male

in the balance, factory farm corporations are motivated to get meat to domestic and international consumers as efficiently and inexpensively as possible.[27]

Today, only a handful of giant factory farm companies control meat production in the United States, all of which are wealthy and politically powerful.[28] These companies put cheap meat on tables worldwide and are interested in keeping their high-production, low-cost strategies away from public scrutiny for a variety of reasons.[29]

2. The Right to Know About Matters of Legitimate Public Concern

Broadly speaking, the interest to be considered in a balance against agricultural entity privacy is the public's right to know about how the food supply is produced. Specifically, the most salient issues implicated by the factory farm model include food safety issues, animal abuse, anti-competitive and poorly regulated behavior, and environmentally toxic and unsustainable production methods.

a. *Human Food Safety Issues*

The meat industry poses a significant threat to human health due to the unsanitary conditions innate to the high-production, low-cost strategy involved in factory farming and the large quantities of antibiotics used, often ineffectively, to mitigate the squalid conditions.[30] This misuse of antibiotics leads to antibiotic-resistant super-bacteria, like salmonella and E. coli, which in turn lead to sicker animals and sicker people.[31] The United States Department of Agriculture (USDA) recently found that 24% of all cut-up chicken is contaminated by some form of salmonella, and another study by *Consumer Reports* found that more than a third of chicken breasts tainted with salmonella carry the antibiotic-resistant strain.[32] When humans are

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chicks, for example, are killed because they cannot lay eggs and are "unsuitable" for meat).

27. Kingery, *supra* note 23, at 647.

28. LEONARD, *supra* note 5, at 3-5, 203, 229-31 (discussing vertical integration, buyer power in concentrated markets, antitrust authorities standing idly by during the rise of the meat oligarchy, and the trend towards meat industries being controlled by only a few major companies); *Modern Meat: Transcript*, PBS FRONTLINE, http://www.pbs.org/wgbh/pages/frontline/shows/meat/etc/script.html (last visited Mar. 12, 2016).

29. *Modern Meat: Transcript*, *supra* note 28.

30. Adam, *supra* note 9, at 1149.

31. *Id.*

32. Wil S. Hylton, *A Bug in the System: Why Last Night's Chicken Made You Sick*, THE NEW YORKER (Feb. 2, 2015),

infected with these antibiotic-resistant bacteria, they often cannot be successfully treated with conventional medication.[33]

The USDA, the Food and Drug Administration (FDA), and the Centers for Disease Control and Prevention (CDC) have all acknowledged that the factory farm model will inevitably result in the delivery of antibiotic-resistant bacteria into home kitchens and restaurants nationwide.[34] Importantly, these dangerous bacteria can infect all foods that contact the bacteria, not just meat, and when food is recalled, as little as 30% of the recalled item may actually be removed from the reach of consumers.[35] One example is particularly telling: In early August 2011, Cargill recalled 36 million pounds of turkey meat from a slaughterhouse in Springdale, Arkansas due to antibiotic-resistant salmonella that sickened more than 100 people and killed another.[36] The factory shut down, disinfected, and used a new antibacterial wash, allegedly subjecting itself to the most aggressive salmonella monitoring and testing in the nation's poultry industry.[37] By mid-August, the plant was back in full swing, and so was the same strain of antibiotic-resistant salmonella.[38]

Additionally, the high-production, low-cost strategy of meat production depends on the use of growth hormones to artificially produce bigger animals faster.[39] Human consumption of these growth hormones has been linked to various cancers as well as developmental and reproductive problems.[40]

Despite these compelling and well-documented threats to public health, people continue to choose cheap meat. The dollar amounts Americans spend on average for health care versus groceries has swapped roles since the 1950s: while Americans used to spend 4.5% of their income on health care and 19% on food, they now spend 18% on health care and only 8% on food.[41]

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http://www.newyorker.com/magazine/2015/02/02/bug-system.

33. Adam, *supra* note 9, at 1149 n.133.

34. Tom Philpott, *For Cargill, It's Tainted Turkey Time Again*, MOTHER JONES (Sept. 13, 2011), http://www.motherjones.com/tom-philpott/2011/09/cargill-turkey-recall.

35. *Modern Meat: Transcript*, *supra* note 28.

36. Philpott, *supra* note 34; Jessica White-Cason, *Understanding Food Recalls: The Recall Process Explained*, FOOD SAFETY NEWS (Aug. 12, 2013), http://www.foodsafetynews.com/2013/08/understanding-food-recalls-the-recall-process-explained/#.VkuGpd-rTVo (explaining that when food is recalled, it means companies and government regulators try to get the offending products out of distributor inventories, off of store shelves, and out of consumer kitchens by collecting the items and raising public awareness).

37. Philpott, *supra* note 34.

38. *Id.*

39. Adam, *supra* note 9, at 1150.

40. *Id.*

41. *Id.*

Although Patrick Boyle, CEO of the American Meat Institute, chalks this up as a "great success story" attributable to "squeezing costs out of the process,"[42] the fact that Americans spend less of their income on food than any other country in the world[43] is alarming considering the intimate connection between diet and health. What can Americans do to readjust their priorities?

Perhaps a lack of transparency in the meat industry is the reason why Americans continue to buy cheap meat, and more transparency and education about factory farm practices would lead to reform and a healthier country.[44] Studies indicate that more than half of mothers believe that providing "all natural" meat products for their families is important even if doing so more expensive.[45] Interestingly, people may have decreased confidence in the integrity of food-labeling methods because words like "natural" may be used with little regulation.[46] Furthermore, the term "chemical free" may not be used on a meat or poultry label under any circumstance.[47]

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42. *Modern Meat: Interview Patrick Boyle*, PBS FRONTLINE, http://www.pbs.org/wgbh/pages/frontline/shows/meat/interviews/boyle.html (last visited Mar. 12, 2016).

43. *The United States Meat Industry at a Glance*, *supra* note 24.

44. Samantha Morgan, *Ag-Gag Challenged: The Likelihood of Success of Animal Legal Defense Fund v. Herbert's First Amendment Claims*, 39 VT. L. REV. 241, 270-71 (2014).

45. *See Consumer Perceptions of Farm Animal Welfare*, ANIMAL WELFARE INST. 9 (Jan. 2016), https://awionline.org/sites/default/files/uploads/documents/fa-consumer_perceptionsoffarmwelfare_-112511.pdf.

46. *See* Astiana v. Hain Celestial Grp., Inc., 783 F.3d 753, 758 (9th Cir. 2015) (noting that the FDA has not defined the word "natural"); Krzykwa v. Campbell Soup Co., 946 F. Supp. 2d 1370, 1374-75 (S.D. Fla. 2013) (noting that the FDA does not regulate use of the word "natural"). *See also* 9 C.F.R. § 301.2 (2016) (offering no definition for the word "natural"). *But see Meat and Poultry Labeling Terms*, USDA, http://www.fsis.usda.gov/wps/portal/fsis/topics/food-safety-education/get-answers/food-safety-fact-sheets/food-labeling/meat-and-poultry-labeling-terms/meat-and-poultry-labeling-terms (last visited Mar. 12, 2016) (defining "natural" as "a product containing no artificial ingredient or added color and [that] is only minimally processed").

47. *Food Safety Information: Meat and Poultry Labeling Terms*, USDA 1 (Apr. 2011), http://www.fsis.usda.gov/wps/wcm/connect/e2853601-3edb-45d3-90dc-1bef17b7f277/Meat_and_Poultry_Labeling_Terms.pdf?MOD=AJPERES.

b. *Animal Abuse*

When over nine billion animals are killed in one year with profit as the primary goal, humans are not the only ones who bear the externalized costs.[48] Instead, animals are the most immediate victims to a game of numbers bent on minimizing costs to maximize gains.[49] Factory farm procedures are designed to produce animals with the greatest weight in the shortest possible time,[50] which often means that animals are confined in crates or enclosures where they cannot move, and they must remain in their own waste for vast periods of time.[51] These animals are often sick or injured; unable to engage in natural animal behavior; subjected to having their offspring taken from them repeatedly; and frequently subjected to physical abuse.[52]

The public believes that animal abuse is rare because the meat industry, which operates behind closed doors, represents instances of affirmative abuse as isolated events.[53] Unfortunately, reports from workers in the industry and undercover exposés do not corroborate the industry's representations of humane animal treatment as the status quo.[54] The reality of what occurs in factory farms is unpleasant and disruptive to the meat-consuming culture in which most of us were raised.[55] Nonetheless, surveys suggest that about half of Americans believe the government should "force all food companies to indicate the level of animal care on their product labels," that 73% of Americans would support laws requiring farm animals to be provided with enough space to act naturally, and that Americans are

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48. *The United States Meat Industry at a Glance*, *supra* note 24.

49. Adam, *supra* note 9, at 1144.

50. *Id.*

51. *Factory Farming*, LAST CHANCE FOR ANIMALS, http://www.lcanimal.org/index.php/campaigns/other-issues/factory-farming (last visited Mar. 12, 2016).

52. *Id.*

53. Morgan, *supra* note 44, at 245.

54. Kingery, *supra* note 23, at 677-78 (stating, after interviewing a twenty-year employee in the meat industry, that "[t]he animals being processed were supposed to be dead by the time they got to Moreno; far too often, however, they were not. . . . [I]t was not uncommon for the animals to survive beyond his station, 'as far as the tail cutter, the belly ripper, the hide puller.' The Humane Slaughter Act requires livestock be rendered 'insensible' to pain prior to slaughter. Enforcement records, affidavits from workers, interviews, and videos provide important evidence that this regulation is repeatedly violated.").

55. DAVID DEGRAZIA, ANIMAL RIGHTS: A VERY SHORT INTRODUCTION 2 (2002) ("Most people are opposed to cruelty and sense that animals have moral significance. At the same time, traditional views that sanction animal use with few constraints have deeply influenced our beliefs and everyday practices. The moral and intellectual tension one can experience in the face of such conflicting beliefs motivates an effort to sort out these issues.").

willing to pay more for humanely raised meat products.[56] These figures demonstrate that Americans are concerned about the conditions involved in raising animals for meat, and other legal authorities concur that humane animal treatment is a matter of public interest.[57]

c. *A Self-Regulated Monopolistic Industry That Sets Its Own Standards*

Given the huge and powerful self-regulated industry that has become the dominant means of producing food for Americans,[58] the public's ability to know about what goes on behind the closed doors of factory farms relies on whistleblowing and transparency.[59] However, whistleblowers in the corporate meat industry face serious employment consequences and apathetic authority figures; abuse is seldom reported because the reporter risks being fired or demoted, and the report will unlikely result in any action on behalf of the animals.[60] Furthermore, the Hazard Analysis Critical Control Point system required by the USDA to regulate food safety is primarily implemented by factory farm facilities' own employees.[61] The Food Safety and Inspection Service (FSIS) inspectors review only the attendant paperwork.[62]

These government agencies, charged with knowledge and the duty to regulate, know about the dangers and the violations, but they do little to rectify the problems.[63] Instead, the factory farm giants are cozy with the agencies, who are supposed to regulate them but disregard accusations of

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56. *Consumer Perceptions of Farm Animal Welfare*, *supra* note 45, at 3-7.

57. Animal Welfare Act, 7 U.S.C. §§ 2131-2159 (2012) (implicating humane animal treatment as a matter of public concern). Many court cases identify issues concerning humane animal treatment as matters entitled to First Amendment protection. *See, e.g.*, Ouderkirk v. People for the Ethical Treatment of Animals, Inc., No. 05-10111, 2007 WL 1035093, at *18 (E.D. Mich. Mar. 29, 2007) (providing a string cite implicating such cases). Even the Animal Enterprise Terrorism Act provides an exception for "any lawful economic disruption" caused by "reaction to the disclosure of information about an animal enterprise." 18 U.S.C. § 43 (2012); Landfried, *supra* note 16, at 393-94. And, Justice Alito has characterized humane animal treatment as a compelling interest. U.S. v. Stevens, 559 U.S. 460, 496 (2010) (Alito, J., dissenting).

58. Adam, *supra* note 9, at 1144 ("Responsible for over ninety-five percent of the country's chicken, eggs, turkey, and pork and over seventy-five percent of beef cattle, factory farming has become the dominant means of producing food for the American consumer.").

59. Reid & Kingery, *supra* note 8, at 53.

60. Kingery, *supra* note 23, at 679.

61. Reid & Kingery, *supra* note 8, at 50-51.

62. *Id.*

63. Philpott, *supra* note 34.

food safety violations and animal abuse.[64] Smaller-scale companies that could likely produce safer food with less pollution, while treating animals more ethically, cannot compete with the factory farm model with its large profit margins and government subsidies.[65] Indeed, if citizens do not take matters into their own hands to educate the public, who will?

d. *Lack of Sustainability and Vast Environmental Degradation*

Factory farming has been implicated as a major contributor to various types of environmental pollution.[66] The Food and Agriculture Organization of the United Nations has concluded that "[t]he livestock sector emerges as one of the top two or three most significant contributors to the most serious environmental problems."[67] The vast amounts of waste produced by factory farms pollute our air and water and contribute to global warming.[68] Because the growth of the factory farm industry post-dates many U.S. environmental laws, the industry often escapes emissions-related laws and regulations.[69]

In addition, the meat industry is inefficient and unsustainable.[70] The country is able to feed far fewer people because it feeds the grain it produces to livestock instead of people.[71] Animal agriculture is the leading user of the country's water resources, a significant fact in light of the water shortages affecting major parts of the country.[72] While grain-fed cattle require 100,000 liters of water per kilogram of food produced, plants like rice, wheat, and potatoes use an average of about 1,100 liters per kilogram of food

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64. Kingery, *supra* note 23, at 680; *see* Steve Suppan, *The TPP SPS Chapter: Not a "Model for the Rest of the World,"* INST. FOR AGRIC. & TRADE POL'Y (Nov. 12, 2015), http://www.iatp.org/documents/the-tpp-sps-chapter-not-a-%E2%80%9Cmodel-for-the-rest-of-the-world%E2%80%9D (stating that the U.S. regulatory system and its scientific underpinnings have been captured by the industries it regulates); *see also* Philpott, *supra* note 34.

65. Adam, *supra* note 9, at 1147-48; LEONARD, supra note 5, at 265 (discussing large meat producers' massive profit margins, ability to extinguish open markets and buy up competitors, and the USDA's multibillion-dollar crop subsidies to Tyson foods since 1996); *Putting Meat on the Table: Industrial Farm Animal Production in America*, PEW COMM'N ON INDUS. FARM ANIMAL PROD. 1, 2 (2008), http://www.ncifap.org/_images/PCIFAPFin.pdf.

66. Adam, *supra* note 9, at 1146.

67. *Id.*

68. *Id.* at 1146-47.

69. *Id.*

70. *U.S. Could Feed 800 Million People with Grain That Livestock Eat, Cornell Ecologist Advises Animal Scientists*, CORNELL CHRON. (Aug. 7, 1997), http://www.news.cornell.edu/stories/1997/08/us-could-feed-800-million-people-grain-livestock-eat.

71. *Id.*

72. *Id.*

produced.[73] Also, animal agriculture is responsible for an alarming rate of soil erosion in the United States.[74]

e. *The Factory Farm Model Is Adopted by Developing Nations*

The implications of the way factory farms are allowed to conduct business in the United States is not only significant due to the reasons discussed above. Other developing nations are adopting these types of practices to their own detriment and to the detriment of the global community.[75] As populations increase around the globe, land becomes scarce, and factory farming becomes attractive, especially if its drawbacks are not brought to light.[76] Often these developing nations are not equipped to handle the amount of pollution generated by factory farm practices, to regulate worker safety, or to enforce animal welfare laws, assuming those laws even exist.[77] In sum, the adoption of the factory farm model by developing nations around the globe magnifies all of the above-mentioned concerns emanating from the factory farm method.

B. *Ag-Gag Sweeps the Nation*

In an attempt to educate the public about these serious problems, various interest groups initiated efforts to record business practices inside factory farms.[78] In 2008, the Humane Society released an undercover video capturing six weeks' worth of evidence from the Hallmark Meat Packing Company in Chino, California.[79] The video showed workers resorting to abusive tactics in order to get downed cattle (non-ambulatory cattle or cattle that are too sick to stand or walk) to slaughter.[80] The video resulted in the recall of 143 million pounds of beef, the largest in U.S. history,[81] because downed cattle are banned from the food supply.[82] The company did not recover from the episode and eventually filed for bankruptcy.[83] Two employees faced criminal charges for the abusive events.[84] This video

73. *Id.*
74. *Id.*
75. *Putting Meat on the Table: Industrial Farm Animal Production in America*, *supra* note 65, at 9.
76. *Id.*
77. *Id.*
78. Shea, *supra* note 7, at 337-38.
79. *Id.*
80. *Id.*
81. Adam, *supra* note 9, at 1152; Shea, *supra* note 7, at 338.
82. 21 C.F.R. § 189.5 (2015).
83. Shea, *supra* note 7, at 338.
84. Adam, *supra* note 9, at 1152.

represents only one of countless others produced in a surge of efforts by citizens and interest groups to inform the public about factory farm practices; these films have understandably damaged the reputation of the meat industry and sparked retaliatory legislation by the powerful meat lobby.[85]

Ag-gag legislation, which first emerged in the 1990s,[86] has recently re-emerged as a contentious topic in the law and in the media. Since 2011, about half of America's state legislatures have attempted to pass at least one ag-gag law, and these laws have had varying degrees of success.[87] These statutes criminalize whistleblowing and are aimed at giving special protection to the privacy interests of large-scale meat-producing companies to the detriment of the public's right to know about the industry's practices.[88]

Thus far, the majority of ag-gag legislation can be said to criminalize one or more of four main categories of behavior: (1) recording, photographing, videotaping, or audio-recording at agricultural facilities; (2) possession or distribution of recordings; (3) dishonesty while applying for employment to gain access to a facility; and (4) failure to report recorded abuse or relinquish recordings within a very short time frame, also known as mandatory disclosure.[89]

Each of these implicates First Amendment rights.[90] Category One targets protected speech critical of animal agricultural practices.[91] The argument that the law does not restrict speech but merely restricts conduct is unavailing because the recordings are communicative, and there is an audience to receive the communication.[92] Category Two implicates First

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85. *Id.* at 1151-55; Kingery, *supra* note 23, at 680.

86. Kansas produced the first ag-gag bill in 1990, followed by Montana and North Dakota in 1991. KAN. STAT. ANN. § 47-1827 (2015); MONT. CODE ANN. § 81-30-101 (2015); N.D. CENT. CODE § 12.1-21.1-02 (2015). All of these laws currently remain valid.

87. *Ag-Gag Legislation by State*, AM. SOC'Y FOR THE PREVENTION OF CRUELTY TO ANIMALS, http://www.aspca.org/animal-protection/public-policy/ag-gag-legislation-state (last visited Mar. 29, 2016) (noting that twenty-six states in all have either passed or tried to pass ag-gag laws since 1990).

88. Paige M. Tomaselli, *You Have a Constitutional Right to Record and Report Illegal Activity at Factory Farms*, CTR. FOR FOOD SAFETY (Aug. 6, 2015), http://www.centerforfoodsafety.org/blog/4002/you-have-a-constitutional-right-to-record-and-report-illegal-activity-at-factory-farms.

89. Reid & Kingery, *supra* note 8, at 37.

90. *See infra* notes 91-101 and accompanying text.

91. Adam, *supra* note 9, at 1169-70.

92. *See* Spence v. Washington, 418 U.S. 405, 410-11 (1974) (stating that the test for expressive conduct requires that "[a]n intent to convey a particularized message was present, and in the surrounding circumstances the likelihood was great that the message

Amendment rights for the same reason—it chills protected speech critical of animal agricultural practices.[93]

Category Three developed as an attempt to circumvent First Amendment challenges by avoiding reference to any type of recording and simply criminalizing dishonesty in applying for an agricultural job for the purpose of undercover reporting.[94] Some newer, stronger versions of this category have evolved that make "employment fraud" in any context illegal, which might minimize the risk the law will fail for restricting the content of speech.[95] Although fraudulent speech is typically an unprotected category of speech, the Supreme Court clarified in *United States v. Alvarez* that the government may criminalize only false statements that directly cause a legally cognizable harm.[96] In the context of ag-gag cases, *Otter*, citing *Alvarez*, demonstrates that the alleged harm claimed by these farm entities results from publication of true stories that the public finds unacceptable, not from any deception to gain employment and access.[97]

Similarly, Category Four is subject to First Amendment challenge. Mandatory disclosure laws are ag-gag laws disguised as proactive measures to mitigate animal abuse.[98] By attaching criminal sanctions to people who document animal abuse but do not report it to authorities within a very short time frame, the laws chill speech and prevent reporters from compiling comprehensive evidence and patterns of abuse.[99] The First Amendment, however, protects not only the right to affirmatively speak, but also the right to refrain from speaking.[100] These rights "are complementary components of the broader concept of 'individual freedom of mind.'"[101]

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would be understood by those who viewed it"). *See also* Adam, *supra* note 9, at 1137; Reid & Kingery, *supra* note 8, at 37.

93. Landfried, *supra* note 16, at 397-98.

94. *Id.* at 396.

95. Reid & Kingery, *supra* note 8, at 46.

96. United States v. Alvarez, 132 S. Ct. 2537, 2545 (2012).

97. Animal Legal Def. Fund v. Otter, 118 F. Supp. 3d 1195, 1204 (D. Idaho 2015), *appeal filed* (9th Cir. Dec. 14, 2015) ("Instead, the most likely harm that would stem from an undercover investigator using deception to gain access to an agricultural facility would arise, say, from the publication of a story about the facility, and not the misrepresentations made to gain access to the facility."). The opinion went on to discount the argument that misrepresentations made in the context of ag-gag cases are motivated by material personal gain, which would render them unprotected as fraudulent. *Id.*

98. Reid & Kingery, *supra* note 8, at 69.

99. *See id.* at 37.

100. *See id.* at 70.

101. Riley v. Nat'l Fed'n of the Blind of N.C., Inc., 487 U.S. 781, 797 (1988).

III. ANIMAL LEGAL DEFENSE FUND V. OTTER

Of all the ag-gag bills in various forms and various stages of the law-making process, four statutes have been the subject of complaints filed in federal court, but only one has proceeded to trial on the merits:[102] *Animal Legal Defense Fund v. Otter* was litigated in federal court in Idaho and has been appealed to the Ninth Circuit Court of Appeals.[103] The *Otter* plaintiffs challenged the constitutionality of Idaho's ag-gag statute as a violation of the Freedom of Speech and Equal Protection Clauses and argued that the Idaho statute was preempted by federal law.[104] The Idaho statute implicates the types of speech in Categories One and Three by creating criminal penalties for "interference with agricultural production" when a person knowingly:

> (a) Is not employed by an agricultural production facility and enters an agricultural production facility by force, threat, misrepresentation or trespass; (b) Obtains records of an agricultural production facility by force, threat, misrepresentation or trespass; (c) Obtains employment with

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102. The first challenge, *Animal Legal Defense Fund v. Herbert*, was filed in federal court in Utah, and the case is still pending. *See* Complaint at 1, Animal Legal Def. Fund v. Herbert, No. 2:13CV00679, 2013 WL 4017889 (D. Utah Jul. 22, 2013) (challenging constitutionality of UTAH CODE ANN. § 76-6-112 under the First Amendment as both content-based and overbroad). Like Idaho's ag-gag law, Utah's law implicates the types of speech in Categories One and Three. *See* Reid & Kingery, *supra* note 8, at 39. The last action taken in this Utah suit, according to the docket, was an Order Granting Unopposed Extension of Time to File Dispositive Motions filed on March 10, 2016 giving the parties until May 30, 2016 to file dispositive motions. Idaho's *Animal Legal Defense Fund v. Otter* was the second complaint filed on March 17, 2014. *See* Complaint at 50, Animal Legal Def. Fund v. Otter, No. 1:14-CV-00104-BLW, 2014 WL 1017045 (D. Idaho Mar. 17, 2014). Next came a complaint filed in federal court in Wyoming in September of 2015. *See* Complaint at 1, 69, Western Watersheds Project et al. v. Michael et al., No. 2:15-CV-00169-SWS (D. Wyo. Sept. 29, 2015) (challenging the constitutionality of WYO. STAT. ANN. § 6-3-414 and § 40-26-101 under the First and Fourteenth Amendments). The fourth and most recent complaint was filed in North Carolina in January of 2016. *See* Complaint at 1–2, 55, People for the Ethical Treatment of Animals et al. v. Cooper et al., No. 1:16-CV-00025 (M.D.N.C. Jan. 13, 2016) (challenging constitutionality of N.C. GEN. STAT. § 99A-2 under the the First and Fourteenth Amendments).

103. Animal Legal Def. Fund v. Otter, No. 1:14-CV-00104-BLW, 2015 WL 4623943 (D. Idaho Aug. 3, 2015); Notice of Appeal at 1–4, Animal Legal Def. Fund v. Wasden, No. 1:14-CV-00104-BLW.

104. *Id.* at 1199. The plaintiffs claimed that the ag-gag law was preempted by three different federal statutes: the False Claims Act, the Food Safety Modernization Act, and the Clean Water Act. *See* Complaint at 46-48, Animal Legal Def. Fund v. Otter, No. 14-00104, 2014 WL 1017045 (D. Idaho Mar. 17, 2014). The court, however, did not rule on these points.

> an agricultural production facility by force, threat, or misrepresentation with the intent to cause economic or other injury to the facility's operations . . . ; (d) Enters an agricultural production facility that is not open to the public and, without the facility owner's express consent or pursuant to judicial process or statutory authorization, makes audio or video recordings of the conduct of an agricultural production facility's operations; or (e) intentionally causes physical damage or injury to the agricultural production facility's operations, livestock, crops, personnel, equipment, buildings or premises.[105]

On August 3, 2015, Chief Judge Winmill of the United States District Court for the District of Idaho ruled that the ag-gag statute's audiovisual recording prohibition was a content-based and viewpoint-based speech restriction, which warranted strict scrutiny; that the government's interest in protecting the privacy of Idaho's agricultural production facilities was not compelling; that the ag-gag statute was not narrowly tailored to serve such an interest; and that the ag-gag statute did not even withstand rational basis analysis under an Equal Protection analysis.[106] Whether discussing privacy or the First Amendment, the public's right to know is a theme that rings true throughout the opinion.[107]

A. *Otter's First Amendment Analysis*

First, the court set out to establish that the activity burdened by the Idaho law constitutes speech.[108] The court quickly dispensed with the State's argument that the law burdened bare conduct and not speech.[109] In doing so, the court implicitly found that there was a message to be communicated by

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105. IDAHO CODE ANN. § 18-7042(1)(a)-(e) (2015), *declared unconstitutional by Otter*, 118 F. Supp. 3d at 1211-12.

106. *Otter*, 118 F. Supp. 3d at 1207-08. Although a final order has not been issued at the time of this article's writing because of arguments relating to an appropriate remedy, the substance and reasoning of the non-final order have been designated for publication by the issuing court and will unlikely change unless appealed. Because the time for filing a notice of appeal is measured from the date a final order is issued, the State of Idaho has ample time to request an appeal and will likely do so. Although the parties have allegedly agreed that the preemption arguments are rendered moot by the substance of the interlocutory order, the preemption issues could still be brought up on appeal. Telephone interview with Julie Varin, Law Clerk for Chief Judge B. Lynn Winmill, U.S. Dist. Court for the Dist. of Idaho (Oct. 14, 2015).

107. *Otter*, 118 F. Supp. 3d at 1201, 1207-08.

108. *Id.* at 1202-03.

109. *Id.* at 1202.

the burdened activity and an audience to receive the communication.[110] The court reasoned that just as writing, painting, and playing an instrument are purely expressive activities, so is audiovisual recording.[111]

Next, the court explained why the "misrepresentations" (or false speech) targeted by the law constitute protected speech.[112] Under *United States v. Alvarez*, the government may criminalize false statements only when the statements themselves cause legally cognizable harm.[113] The court asserted that the defendant could not establish material or legally cognizable harm solely by misrepresenting or omitting a journalistic or political affiliation.[114] Instead, any harm that would likely arise from an undercover investigation would result directly from the public's reaction to the content of a published story.[115] Furthermore, when an undercover employee is paid for the work performed, reasonable reliance on a material misrepresentation is absent.[116]

The bottom line is that the publication of a true story is not the type of direct material harm proscribed by *Alvarez* because the undercover reporters did not obtain any material advantage by making the misrepresentations.[117] Conversely, "the lies used to facilitate undercover investigations actually advance core First Amendment values by exposing misconduct to the public eye and facilitating dialogue on issues of considerable public interest. This type of politically salient speech is precisely the type of speech the First Amendment was designed to protect."[118]

The court correctly reasoned that the Idaho statute was content-based because it targeted only speech related to the operations of an agricultural production facility, and because the evidence demonstrated that the statute's underlying purpose was to silence animal activists.[119] Although a statute

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110. *See id.* at 1205; *see also* Spence v. Washington, 418 U.S. 405, 409-11 (1974).

111. *Otter*, 118 F. Supp. 3d at 1205.

112. *Id.* at 1203-04.

113. 132 S. Ct. 2537, 2545 (2012) (holding that the Stolen Valor Act, as applied to a man who pleaded guilty to misrepresenting that he had won a Congressional Medal of Honor, violated the First Amendment as a content-based restriction).

114. *Otter*, 118 F. Supp. 3d at 1203-04.

115. *Id.* at 1204; *accord* Food Lion, Inc. v. Capital Cities/ABC, Inc., 194 F.3d 505, 522 (4th Cir. 1999) (holding that the publication damages claimed by Food Lion resulted directly from diminished consumer confidence in the store and that it was Food Lion's food handling practices, not the publication of them, which caused the loss of consumer confidence).

116. *Food Lion*, 194 F.3d at 514.

117. *See Otter*, 118 F. Supp. 3d at 1204.

118. *Id.*

119. *Id.* at 1205. The court identified evidence that demonstrated a purpose to silence animal activists in the statute's legislative history and in its disproportionate criminal sanctions. *Id.* at 1205-07. The law authorized a sentence of imprisonment for up to one

meeting either one of these standards would amount to a content-based restriction, the court held that the Idaho law satisfied both.[120] The court rejected the State's argument that the law did not regulate what was said but only where it was said, reasoning that a person could not violate the law simply by standing in an agricultural production facility.[121]

Thus concluding that strict scrutiny applies, the court proceeded to reject the State's argument that the law was narrowly tailored to advance a compelling state interest.[122] Although the court acknowledged that the "State's interest in protecting personal privacy and private property is certainly an important interest,"[123] the court was not convinced that the asserted interests were compelling.[124] Property and privacy interests do not supersede all other interests, and "food production is not a private matter" because the safety of the food supply, worker safety, and the humane treatment of animals are all matters of legitimate public interest.[125]

Even assuming the State's interests were compelling, the court noted that the law was not narrowly drawn, primarily because Idaho's other laws prohibiting fraud, theft, trespass, and defamation adequately protect those interests without burdening free speech.[126] The court found it particularly alarming that even legitimate employees who were engaged in whistleblowing could fall within the statute's reach.[127] Although the State insisted that the law was narrowly tailored because it applied only to speech in a private forum, the court simply reiterated its theme that the public had a First Amendment right to know: "[A]nimal agriculture is a heavily-regulated [sic] industry and food production and safety are matters of the utmost public concern."[128] "The remedy for misleading speech, or speech we do not like, is more speech, not enforced silence."[129] "Society has the right and civic duty to engage in open, dynamic, rational discourse," and "[t]hese ends are

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year; a $5,000 fine; and restitution twice the amount of damages resulting from the violation. IDAHO CODE ANN. § 18-7042 (3)-(4) (2015), *declared unconstitutional by Otter*, 118 F. Supp. 3d at 1211-12.

120. *Otter*, 118 F. Supp. 3d at 1205-07.

121. *Id.* at 1205.

122. *Id.* at 1207.

123. *Id.*

124. *Id.*

125. Animal Legal Def. Fund v. Otter, 118 F. Supp. 3d 1195, 1207-08 (D. Idaho 2015), *appeal filed* (9th Cir. Dec. 14, 2015).

126. *Id.* at 1208.

127. *Id.*

128. *Id.*

129. *Id.* (citing Whitney v. California, 274 U.S. 357, 377 (1927) (Brandeis, J., concurring)).

not well served when the government seeks to orchestrate public discussion through content-based mandates."[130]

B. *Otter's Equal Protection Analysis*

While the court's First Amendment analysis acknowledged that the State's interest in "protecting personal privacy and private property is certainly an important interest," the court's Equal Protection analysis applied rational basis scrutiny.[131] Even more interestingly, the Idaho statute did not survive rational basis scrutiny because "a bare congressional desire to harm a politically unpopular group cannot constitute a legitimate governmental interest," and because "[p]rotecting the private interests of a powerful industry, which produces the public's food supply, against public scrutiny is not a legitimate government interest."[132] As with the content-based speech analysis, the court found the Idaho statute to satisfy both standards for discriminating between classes: it discriminated facially, and its purpose was to discriminate.[133]

Generally under the law, "important" or legitimate interests should withstand rational basis scrutiny,[134] but *Otter*'s rational basis analysis had teeth, similar to landmark cases like *City of Cleburne v. Cleburne Living Center, Inc.*,[135] or *Romer v. Evans*[136] in which a court demonstrated a willingness to strike a statute that burdened a particular group for illegitimate reasons.[137] *Otter* seems to be applying rational basis "with bite" to a statute that targets whistleblowers in the food production context because protecting the privacy of meat-producing entities is an illegitimate statutory goal when it conflicts with the public's right to know about activities concerning food production.[138]

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130. *Otter*, 118 F. Supp. 3d at 1209.
131. *Id.* at 1207-09.
132. *Id.* at 1210 ("Many legislators made their intent crystal clear by comparing animal rights activists to terrorists, persecutors, vigilantes, blackmailers, and invading marauders who swarm into foreign territory and destroy crops to starve foes into submission."). Furthermore, the existence of laws to protect citizens against fraud, theft, trespass, and defamation demonstrated that the law lacked a rational relationship to the asserted interests. *Id.* at 1202.
133. *Otter*, 118 F. Supp. 3d at 1210.
134. *See* Alex M. Hagen, *Mixed Motives Speak in Different Tongues: Doctrine, Discourse, and Judicial Function in Class-of-One Equal Protection Theory*, 58 S.D. L. REV. 197, 210 (2013) ("Generally, state action subject to rational basis review will survive, and state action subject to heightened scrutiny will be invalidated.").
135. 473 U.S. 432 (1985).
136. 517 U.S. 620 (1996).
137. Hagen, *supra* note 134, at 217.
138. *Otter*, 118 F. Supp. 3d at 1207.

Amicus Erwin Chemerinsky submitted an alternative Equal Protection argument to which the court gave additional attention.[139] Chemerinsky argued that the Idaho statute unjustifiably discriminated on the basis of a fundamental right—free speech—thus, strict scrutiny should apply to the Equal Protection argument too.[140] The court's decision to strike the statute under rational basis when it could have simply maintained its application of strict scrutiny is remarkable: the court sent a clear message that statutes created to protect the privacy of meat-producing entities against the public's right to know cannot survive any degree of constitutional scrutiny.[141] Although bold, the court's decision was correct because the public's right to know in the context of factory farm food production is very strong, and the meat industry's right keep its business activities private is very weak.

Courts and legal scholars seem to agree that ag-gag laws do not pass constitutional muster.[142] The privacy interest of these giant meat-producing

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139. *Id.* at 1211.

140. *Id.*

141. *Id.* at 1207.

142. *See, e.g.*, Adam, *supra* note 9, at 1174 ("As such, most 'ag-gag' laws will be either ineffective or unconstitutional; they will provide minimal punishment and permit distribution, or they will be deemed unconstitutional prior restraints on free speech."); Kingery, *supra* note 23, at 668 ("Under these elements of First Amendment analysis, the provisions of Ag Gag bills that would make undercover videotaping and photography illegal do not appear to be constitutional."); Landfried, *supra* note 16, at 389 ("Additionally, neither type of bill serves a compelling government purpose. Indeed, these bills more likely *restrict* a compelling government interest in public access to information relating to food safety and animal cruelty. These ag-gag laws therefore are unlikely to survive a strict-scrutiny test and would be held unconstitutional."); Larissa U. Liebmann, *Fraud and First Amendment Protections of False Speech: How United States v. Alvarez Impacts Constitutional Challenges to Ag-Gag Laws*, 31 PACE ENVTL. L. REV. 566, 573 (2014) ("The [ag-gag] laws can be understood to be 'specifically targeting people engaged in First Amendment activities,' and a court may therefore use a heightened level of scrutiny, perhaps even strict scrutiny."); Morgan, *supra* note 44, at 273 ("Whether or not the plaintiffs in *ALDF v. Herbert* are ultimately successful, there are numerous reasons why courts should protect animal activists' right to film in factory farms. Whistleblowers are vital to animal protection groups because no laws currently exist that specifically protect farm animals, and factory farm workers are unlikely to report abuse."); Reid & Kingery, *supra* note 8, at 68 ("Ag-gag criminal prosecutions seem to present exactly the grave and unacceptable danger of suppressing truthful speech that even the *Alvarez* dissenters acknowledged is protected under the First Amendment."); Shea, *supra* note 7, at 370-71 ("And, depending on the outcome of lawsuits challenging ag-gag statutes filed in Utah and Idaho, rapid reporting statutes might soon be considered the only constitutionally valid form of ag-gag."); Daniel L. Sternberg, *Why Can't I Know How the Sausage Is Made?: How Ag-Gag Statutes Threaten Animal Welfare Groups and the First Amendment*, 13 CARDOZO PUB. L. POL'Y & ETHICS J. 625, 656-57 (2015) ("Ag-Gag statutes, by making slaughterhouses

corporations (assuming arguendo any privacy interest exists at all) is simply too weak to overcome the public's right to know. The analyses of *Otter* undertaken so far focuses on the First Amendment or Equal Protection as being sufficient to strike ag-gag laws. But what about the countervailing right asserted by the State? The privacy of agricultural business entities is really the only interest alleged in defense of the ag-gag statute in *Otter*.[143]

Otter said, "The State's interest in protecting *personal* privacy . . . is certainly an important interest."[144] But, the court also said, "Protecting the private interests *of a powerful industry*, which produces the public's food supply, against public scrutiny is not a legitimate government interest."[145] *Otter* shows that somewhere between personal privacy rights and the privacy rights of a powerful industry, the strength of the privacy interest breaks down.[146] So, to what degree are artificial entities "persons" who can assert legitimate claims to privacy rights?

IV. THE EVOLUTION OF PRIVACY: A PURELY PERSONAL GUARANTEE THAT GENUFLECTS TO THE FIRST AMENDMENT

Although privacy is an expansive right in many ways, it is also an exceedingly nebulous right; its coverage is like a patchwork quilt—the patches are taken from a plethora of sources; some patches offer rich and adequate protection from offending elements; and some patches are threadbare and weak. This article addresses privacy rights of artificial entities generally and factory farms specifically to determine whether factory farms, which are situated on private property, have any substantial right to privacy. By history and tradition, business entities are not considered "persons" who can assert any practical right of privacy.[147]

The amalgam of rights that comprise privacy comes from constitutional, common, and statutory law;[148] it has roots in both civil and

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impenetrable, threaten animal welfare groups and the First Amendment alike. However, there is a First Amendment right to know how the sausage is made.").

143. *Otter*, 118 F. Supp. 3d at 1202 ("The State responds that § 18–7042 is not designed to suppress speech critical of certain agricultural operations but instead is intended to protect private property and the privacy of agricultural facility owners.").

144. *Id.* at 1207 (emphasis added).

145. *Id.* at 1210 (emphasis added).

146. *Id.*

147. Carl J. Mayer, *Personalizing the Impersonal: Corporations and the Bill of Rights*, 41 HASTINGS L. J. 577, 579-80 (1990).

148. DANIEL J. SOLOVE & PAUL M. SCHWARTZ, INFORMATION PRIVACY LAW 10 (5th ed. 2015).

criminal law;[149] and it protects against both private and public infringers.[150] Privacy is often thought to protect one of two broad categories: informational or decisional privacy.[151] Yet these two categories often converge and can be difficult to distinguish.[152] Ultimately, regardless of its source and regardless of its scope, the privacy right has developed as a protection of values fundamentally human in nature.[153] Privacy, most fundamentally, protects human dignity.[154] Human dignity is an abstract yet indispensable value, and

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149. In the Fourth Amendment context, businesses are entitled to a degree of Fourth Amendment privacy protection, but criminal law tenets broadly accept that with respect to private property used for commercial purposes, owners have a lesser expectation of privacy than they do for noncommercial residences, and, similarly, corporations have a lesser expectation of privacy than individuals. Minnesota v. Carter, 525 U.S. 83, 90 (1998) ("Property used for commercial purposes is treated differently for Fourth Amendment purposes from residential property. 'An expectation of privacy in commercial premises, however, is different from, and indeed less than, a similar expectation in an individual's home.'") (quoting New York v. Burger, 482 U.S. 691, 700 (1987)); Dow Chemical Co. v. United States, 476 U.S. 227, 237-38 (1986) (stating that "the expectation of privacy that the owner of commercial property enjoys in such property differs significantly from the sanctity accorded an individual's home"). Furthermore, the Court has recognized that "a business, by its special nature and voluntary existence, may open itself to intrusions that would not be permissible in a purely private context." G.M. Leasing Corp. v. United States, 429 U.S. 338, 353 (1977).

150. SOLOVE & SCHWARTZ, *supra* note 148, at 34.

151. Whalen v. Roe, 429 U.S. 589, 598-600 (1977) ("The cases sometimes characterized as protecting 'privacy' have in fact involved at least two different kinds of interests. One is the individual interest in avoiding disclosure of personal matters, and another is the interest in independence in making certain kinds of important decisions."); Doe v. City & Cnty. of San Francisco, 835 F. Supp. 2d 762, 768 (N.D. Cal. 2011).

152. *See Whalen*, 429 U.S. at 600 ("Thus, the statute threatens to impair both their interest in the nondisclosure of private information and also their interest in making important decisions independently.");
see generally SOLOVE & SCHWARTZ, *supra* note 148 (treating everything within the textbook as informational privacy, including cases that relate to the issue of decisional privacy, such as *Planned Parenthood v. Casey*, which recognizes that the constitutional right to privacy protects personal autonomy); Colegio Puertorriqueno De Ninas,_Liceo Ponceno, Inc. v. Pesquera De Busquets, 464 F. Supp. 761, 765-66 (D.P.R. 1979) (discussing "informational probes by the government" in the context of *Griswold*'s constitutional penumbras). To use an imperfect heuristic rule, tort privacy law primarily protects informational privacy, while constitutional privacy law (other than the Fourth Amendment) primarily protects decisional privacy.

153. Samuel D. Warren & Louis D. Brandeis, *The Right to Privacy*, 4 HARV. L. REV. 193, 214 (1890).

154. *See* Planned Parenthood of Southeastern Pennsylvania v. Casey, 505 U.S. 833, 851 (1992) (recognizing that the constitutional right to privacy protects "choices central to personal dignity and autonomy"); Schmerber v. California, 384 U.S. 757, 767 (1966) (stating that "[t]he overriding function of the Fourth Amendment is to protect personal privacy and dignity against unwarranted intrusion by the State"). Although the seminal

accordingly, privacy is an abstract yet indispensable component of the law.[155]

A. *Warren and Brandeis: The Right to Informational Privacy*

1. Privacy Was Intended for Natural Persons, Not Artificial Entities

When Samuel D. Warren and Louis D. Brandeis wrote "The Right to Privacy" in 1890 for the *Harvard Law Review*, they did so because they thought it necessary to "define anew the exact nature and extent of such protection" and because "[p]olitical, social, and economic changes entail the recognition of new rights, and the common law, in its eternal youth, grows to meet the demands of society."[156]

Countless scholars trace privacy rights to the Harvard article.[157] Tort remedies developed from the article, and the article's language suggests that the type of privacy it contemplates is complementary to that afforded by the Fourth Amendment.[158] The article's influence in tort law and criminal law demonstrates that these dynamic rights originate from an ultimately common, yet dynamic source. The seminal article makes apparent that Warren and Brandeis were concerned about the informational privacy[159] of individual human beings[160] and the "dignity . . . of the individual":[161]

> The intense intellectual and emotional life, and the heightening of sensations which came with the advance of civilization, made it clear to men that only a part of the pain, pleasure, and profit of life lay in physical things. Thoughts, emotions, and sensations demanded legal recognition, and

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Warren and Brandeis article discusses the privacy of "information," it also discusses the "dignity . . . of the individual." Warren & Brandeis, *supra* note 153.

155. Warren & Brandeis, *supra* note 153.

156. Warren & Brandeis, *supra* note 153, at 193.

157. Roberts v. Gulf Oil Corp., 195 Cal. Rptr. 393, 411 (Cal. Ct. App. 1983); *see* SOLOVE & SCHWARTZ, *supra* note 148, at 11.

158. *See* Warren & Brandeis, *supra* note 153, at 220 ("The common law has always recognized a man's house as his castle, impregnable, often, even to its own officers engaged in the execution of its commands. Shall the courts thus close the front entrance to constituted authority, and open wide the back door to idle or prurient curiosity?").

159. *See generally id.* (referring throughout to the privacy of "information" four times).

160. *Roberts*, 195 Cal. Rptr. at 411-12.

161. Warren & Brandeis, *supra* note 153 ("To determine in advance of experience the exact line at which the *dignity* and convenience of the individual must yield to the demands of the public welfare or of private justice would be a difficult task; but the more general rules are furnished by the legal analogies already developed in the law of slander and libel, and in the law of literary and artistic property.") (emphasis added).

> the beautiful capacity for growth which characterizes the common law enabled the judges to afford the requisite protection, without the interposition of the legislature.[162]

The article uses the word "individual" twenty-eight times and "feelings" seventeen times.[163] It discusses "intrusion upon the domestic circle" and uses the word "domestic" seven times throughout the article to explain the scope of individual privacy rights.[164] It discusses protectable interests in "thoughts, emotions, and sensations" and injuries such as "mental pain and distress" and "mental suffering."[165] These types of injuries only make sense in the context of a human being and certainly not in the context of a corporation or other artificial entity.[166]

The defendants in *Herbert* and *Otter* appear to assert a privacy right springing forth from the fact that their businesses are situated on private property.[167] Warren and Brandeis, however, stated several times that "the principle which has been applied to protect these rights is in reality not the principle of private property, unless that word be used in an extended and unusual sense."[168]

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162. *Id.* at 195.

163. *Id.* at 193-220.

164. *Id.* at 195-214. Domestic means "of, relating to, or involving the family or the household." BLACK'S LAW DICTIONARY 591 (10th ed. 2014).

165. Warren & Brandeis, *supra* note 153, at 196, 206, 213.

166. N.O.C., Inc. v. Schaefer, 484 A.2d 729, 730-31 (N.J. Super. Ct. Law Div. 1984) ("While a corporation may have its reputation or business damaged as a result of intrusive activity, it is not capable of emotional suffering."); *see* Barket v. Clarke, No. 2:12-CV-393 JCM (GWF), 2012 WL 2499359, at *5 (D. Nev. June 26, 2012) (alluding to the idea that privacy torts protect feelings, not reputational harm, in observing that the "false light action differs from a defamation action in that the injury in privacy actions is mental distress from having been exposed to public view, while the injury in defamation actions is damage to reputation"); *accord* Felsher v. Univ. of Evansville, 755 N.E.2d 589, 594 (Ind. 2001) (noting that other jurisdictions have unanimously denied a right of privacy to corporations).

167. *See* Animal Legal Def. Fund v. Otter, 118 F. Supp. 3d 1195, 1202 (D. Idaho 2015), *appeal filed* (9th Cir. Dec. 14, 2015) ("All of these facts suggest that § 18–7042 was designed to suppress speech critical of the agricultural industry, and not protect private property as the State claims."); Defendants' Reply Memorandum in Support of Its Motion to Dismiss at 13-14, Animal Legal Def. Fund v. Herbert, No. 2:13-cv-00679-RJS (D. Utah Jan. 9, 2014).

168. Warren & Brandeis, *supra* note 153, at 213.

2. Privacy Was Not Intended to Protect Matters of Legitimate Public Concern

The article robustly supports the idea that privacy rights must end where the public interest creates a need for information: "The design of the law must be to protect those persons with whose affairs the community has no legitimate concern."[169] Of the six general rules the article posits relating to privacy, the very first provides that "[t]he right to privacy does not prohibit any publication of matter which is of public or general interest."[170]

> In general, then, the matters of which the publication should be repressed may be described as those which concern the private life, habits, acts, and relations of an individual, and have no legitimate connection with his fitness for a public office which he seeks or for which he is suggested, or for any public or quasi public position which he seeks or for which he is suggested, and have no legitimate relation to or bearing upon any act done by him in a public or quasi public capacity. . . . Some things all men alike are entitled to keep from popular curiosity, whether in public life or not, while others are only private because the persons concerned have not assumed a position which makes their doings legitimate matters of public investigation.[171]

Within this same section discussing the competing interests of privacy and matters of legitimate public concern, Warren and Brandeis discuss a need for flexibility in this area of the law and acknowledge the difficulties in applying a standard that escapes definition.[172]

> "Any rule of liability adopted must have in it an elasticity which shall take account of the varying circumstances of each case, — a necessity which unfortunately renders such a doctrine not only more difficult of application, but also to a certain extent uncertain in its operation and easily rendered abortive."[173]

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169. *Id.* at 214. The next sentence in the articles goes on to classify as "proper" the preference to keep private such affairs with which the community has no legitimate concern. *Id.* at 214-15.
170. *Id.* at 214.
171. *Id.* at 216.
172. *Id.*
173. Warren & Brandeis, *supra* note 153, at 215-16.

In other words, privacy protections are necessarily abstract and should not attach in all contexts.

The article concludes by explaining the need for a more robust right to privacy "of the individual" against those who would otherwise pry, appealing to a legal notion familiar to all: "The common law has always recognized a man's house as his castle, impregnable, often, even to its own officers engaged in the execution of its commands. Shall the courts thus close the front entrance to constituted authority, and open wide the back door to idle or prurient curiosity?"[174] Again, this language demonstrates that civil and criminal privacy rights ultimately spring from a common source, and human "dignity" and "feelings" are the relevant interests worthy of protection "against the world."[175]

Today, the four common law privacy rights generally recognized by civil tort law include intrusion upon seclusion, false light, public disclosure, and appropriation.[176] Notably, the law still reflects both of Warren and Brandeis's ideas: privacy rights developed to protect natural individuals, not artificial entities, [177] and the public's right to know can override the privacy interests of a natural individual.[178] As a distinct matter, modern law also shows that extending these four privacy rights to corporations is unpopular, if not unprecedented.[179]

3. Modern Privacy Rights Still Bend a Knee to the First Amendment

The facts of *Ouderkirk v. People for the Ethical Treatment of Animals, Inc.* are somewhat representative of the privacy issues related to ag-gag laws.[180] The decision demonstrates that claims asserting violations of

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174. *Id.* at 220.

175. *Id.* at 213.

176. *See* RESTATEMENT (SECOND) OF TORTS §§ 652A-E (1977).

177. *See* RESTATEMENT (SECOND) OF TORTS § 652I (1977) (stating that "[e]xcept for the appropriation of one's name or likeness, an action for invasion of privacy can be maintained only by a living individual whose privacy is invaded"). Comment C elaborates that a "corporation, partnership or unincorporated association has no personal right of privacy . . . [and] therefore no cause of action for any of the four forms of invasion covered by §§ 652B to 652E." *Id.*

178. *See* discussion *infra* Section IV.A.3.

179. Felsher v. Univ. of Evansville, 755 N.E.2d 589, 594 (Ind. 2001) (noting that the Restatements, without exception, deny a cause of action to corporations, partnerships, and unincorporated associations for any of the four forms of privacy invasion and also noting that other jurisdictions have unanimously denied the protection of privacy rights to corporations).

180. *See* Ouderkirk v. People for Ethical Treatment of Animals, Inc., No. 05-10111, 2007 WL 1035093, at *19 (E.D. Mich. Mar. 29, 2007) (holding that the "methods and

privacy tort law, even on behalf of natural persons, must yield when the information at issue is a matter of legitimate public concern.[181] In *Ouderkirk*, two undercover reporters gained access to a couple's chinchilla ranch in Michigan by misrepresenting themselves as interested potential buyers of the ranch.[182] The ranch owners granted permission for the undercover duo to record footage of the ranch operations that included Mr. Ouderkirk killing chinchillas via electrocution and cervical dislocation.[183] Eventually, PETA published an informative article about the Ouderkirks' chinchilla ranch on its website, complete with video clips.[184] The video clips contained graphic and controversial information, cast the Ouderkirks in a negative light, and resulted in public outrage.[185] The Ouderkirks sued PETA in tort for intrusion upon seclusion, misappropriation, false light, and intentional infliction of emotional distress.[186]

The Ouderkirks' intrusion claim was unsuccessful because they could not meet their burden of showing that the subject matter of the disclosure was private, and because they had granted permission for the undercover reporters to film.[187] According to the court, a privacy right is waived when a defendant publicizes the activities of a business that deals with the public.[188] Furthermore, the court, interpreting Michigan law, noted that consent precludes an intrusion claim, even if the consent was obtained by misrepresentation or fraud, and even when the defendants exceeded the scope of the permission granted.[189]

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practices of raising and destroying animals, especially for commercial purposes, has been recognized as a matter of public concern").

181. *See generally id.*

182. *Id.* at *1.

183. *Id.* at *5.

184. *Id.* at *6.

185. *Ouderkirk*, 2007 WL 1035093, at *6-7, *10.

186. *Id.* at *1. The Ouderkirks did not, for some reason, bring a privacy claim asserting publicity given to private facts, although that claim would presumptively fail as well for the same reason as the other three—the information disclosed was not private. The claim for intentional infliction of emotional distress is beyond the scope of this article, but the court held that the claim was unsuccessful because the defendants' conduct was not "so extreme in degree, as to go beyond all possible bounds of decency and to be regarded as atrocious and utterly intolerable in a civilized community." *Id.* at *24.

187. *Id.* at *13-14, *17 (stating that the elements of the Michigan intrusion claim include: "(1) an intrusion by the defendant, (2) into a matter that the plaintiff has a right to keep private, (3) by the use of a method that is objectionable to the reasonable person").

188. *Id.* at *14 (noting that the Ouderkirks were active in industry associations, they conducted seminars open to the public for a small fee on their methods and practices, and many of their customers posted information about their ranch online).

189. *Id.* at *15.

In bolstering the idea that fraud does not vitiate consent to an intrusion, the court went on to discuss the distinction between privacy rights based on property interests and those based on one's "inviolate personality,"[190] similar to the theme of the Warren and Brandeis article.[191] Because no "embarrassingly intimate details" of the Ouderkirks' lives were publicized, their privacy claim based on intrusion failed.[192]

The Ouderkirks' misappropriation claim also failed because the court held that the defendants' publication concerned matters of legitimate public concern.[193] The court upheld the notion that the First Amendment bars appropriation liability when the disclosed information is newsworthy, as long as the plaintiff's name or likeness was not used primarily for commercial gain.[194] The court reasoned that disclosure is necessary for "the maintenance of an informed public."[195] Deciding what is in the sphere of the public interest is an issue for the court as a matter of law, and the opinion suggests that courts will give the public interest exception a wide berth.[196] The court did not hesitate to include commercial practices that involve raising and destroying animals as being well within the realm of public interest.[197]

In finding that PETA's disclosures were matters of legitimate public interest, the court cited the Animal Welfare Act and multiple court cases recognizing the public's interest in humane animal treatment.[198] The court

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190. *Ouderkirk*, 2007 WL 1035093, at *15-16.

191. Warren & Brandeis, *supra* note 153, at 205 ("The principle which protects personal writings and all other personal productions, not against theft and physical appropriation, but against publication in any form, is in reality not the principle of private property, but that of an inviolate personality.").

192. *Ouderkirk*, 2007 WL 1035093, at *17.

193. *Id.* at *18 (stating that the tort of misappropriation is committed whenever "the defendant makes use of the plaintiff's name or likeness for his own purposes and benefit," that "in contrast to the other forms of invasion of privacy, there need be no allegation that a statement about a plaintiff was an intrusion upon seclusion or private matters or that it was in any way false, and that "any unauthorized use of a plaintiff's name or likeness, however inoffensive in itself, is actionable if that use results in a benefit to another") (quoting RESTATEMENT (SECOND) OF TORTS § 652C (1977)).

194. *Id.*

195. *Id.* (citing Battaglieri v. Mackinac Ctr. for Pub. Pol'y, 680 N.W.2d 915, 919 (Mich. Ct. App. 2004)).

196. *See id.* at *18, *20 (stating that "no reasonable fact finder could conclude that the 'defendant's use of plaintiff's likeness was for a predominantly commercial purpose' or that PETA's publication was *entirely* 'without a redeeming public interest, news, or historical value'") (emphasis added).

197. *Ouderkirk*, 2007 WL 1035093, at *19.

198. *Id.* (providing a string cite of five cases implicating humane animal treatment as a subject of general public concern). The Animal Welfare Act's congressional statement of policy asserts that Congress finds it necessary to regulate animals used in commerce

also observed that disclosures by animal rights activists contribute to the public debate and are protected under the First Amendment.[199] "In determining what is a matter of legitimate public interest, account must be taken of the customs and conventions of the community."[200]

The Ouderkirks' third and final privacy tort claim for false light also failed because the information PETA disclosed was substantially true.[201] The Ouderkirks argued that PETA should not have edited the recorded footage to omit certain parts that may have been redemptive.[202] In denying the false light claim, however, the court asserted that substantially true disclosures will not support liability for failing to include facts that might have cast the plaintiff in a *more favorable* light.[203]

Ouderkirk stands for the general concept that claims for violation of privacy rights, specifically those found in tort law, do not, and should not discourage the dissemination of information about matters of legitimate public interest.[204] The plaintiffs' intrusion claim failed because a business that engages with the public interest has no right to privacy in regard to its activities.[205] Their misappropriation claim failed because the First Amendment protects information the public has a right to know.[206] The false light claim failed because the disclosed information was of legitimate public concern and was substantially true.[207] Although the plaintiffs did not bring a privacy claim asserting publicity given to private facts, that claim would have failed for the same reason as the others—the information disclosed simply was not private. Other cases stand for the same idea.[208]

"to insure that animals intended for use in research facilities or for exhibition purposes or for use as pets are provided humane care and treatment," and "to assure the humane treatment of animals during transportation in commerce." 7 U.S.C. § 2131 (2012). The act also has provisions "intended to provide representation for general community interests in the proper care and treatment of animals." 7 U.S.C. § 2143(b)(1)(B)(iii) (2012).

199. *Ouderkirk*, 2007 WL 1035093, at *19.

200. *Id.* at *20 (citing Winstead v. Sweeney, 517 N.W.2d 874, 877 (1994)). This standard is similar to that advocated by the Warren and Brandeis article and more modern case law to determine whether a protectable privacy interest exists. *See supra* notes 172--73 and accompanying text; *see also infra* notes 235-36 and accompanying text.

201. *Ouderkirk*, 2007 WL 1035093, at *20-22.

202. *Id.* at *22.

203. *Id.*

204. *See generally id.*

205. *Id.* at *13.

206. *Ouderkirk*, 2007 WL 1035093, at *20.

207. *Id.* at *22.

208. People for Ethical Treatment of Animals v. Bobby Berosini, Ltd., 895 P.2d 1269, 1284 (Nev. 1995).

Notably, the Ouderkirks, just as the plaintiffs in *Otter* and *Herbert*, ran a business that involved processing animals on their private property.[209] The Ouderkirks had no protectable privacy interest in their small business, a chinchilla ranch consisting of about 700 animals.[210] The difference between the Ouderkirks and ag-gag statute beneficiaries is simply that a multi-billion-dollar corporation that produces most of America's food via monopolistic, unsanitary, and often unethical means undoubtedly has a reduced privacy right relative to natural persons like the Ouderkirks.[211] If a natural person's privacy interest is outweighed by the First Amendment in the context of a small business that engages in animal abuse, then the privacy interest of a large, corporate factory farm will undoubtedly yield to the First Amendment.

B. *Substantive Due Process: The Right to Decisional Privacy*

Considering the fundamental value of human dignity, the variety of ways the U.S. Constitution has been interpreted to provide personal privacy rights should come as no surprise. Although the Constitution does not expressly provide for a right to "privacy,"[212] *Griswold v. Connecticut* interprets the penumbras of the Bill of Rights to provide privacy protection, which is further protected from infringement by the states via the Fourteenth Amendment.[213]

Griswold established that "specific guarantees in the Bill of Rights have penumbras, formed by emanations from those guarantees that help give them life and substance."[214] These penumbral privacy rights are formed by the First Amendment freedoms of speech and association; the Third Amendment right to be free from quartering soldiers in times of peace; the Fourth Amendment right to be free from unreasonable searches and seizures of persons, houses, papers, and effects; the Fifth Amendment right against self-incrimination; and the Ninth Amendment, under which the specific rights granted by the Constitution "shall not be construed to deny or disparage others retained by the people."[215] Just as the right of association is an implicit right that must be honored to make First Amendment rights meaningful, *Griswold* held that decisional privacy is an implicit right that must be honored to make the Bill of Rights meaningful.[216]

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209. *Ouderkirk*, 2007 WL 1035093, at *1.
210. *Id.*
211. *See, e.g.*, Felsher v. Univ. of Evansville, 755 N.E.2d 589, 593-94 (Ind. 2001); N.O.C., Inc. v. Schaefer, 484 A.2d 729, 730-31 (N.J. Super. Ct. Law Div. 1984).
212. Roe v. Wade, 410 U.S. 113, 152 (1973).
213. Griswold v. Connecticut, 381 U.S. 479, 484 (1965).
214. *Id.*
215. *Id.*
216. *See id.* at 483.

This privacy doctrine emanating from *Griswold* and its progeny has been categorized as being within the scope of substantive due process.[217] Most directly, it protects what some refer to as decisional privacy, or personal autonomy, but ultimately, like common law tort privacy, it protects human dignity.[218] Other landmark cases that flesh out the abstract scope of substantive due process include *Griswold v. Connecticut*,[219] *Loving v. Virginia*,[220] *Roe v. Wade*,[221] *Zablocki v. Redhail*,[222] *Planned Parenthood of Southeast Pennsylvania v. Casey*,[223] *Lawrence v. Texas*,[224] and most recently, *Obergefell v. Hodges*.[225] These cases lend constitutional protection that "def[ies] categorical description" to "matters relating to marriage, procreation, contraception, family relationships, and child rearing

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217. *See Roe*, 410 U.S. at 129 ("Appellant would discover this right in the concept of personal 'liberty' embodied in the Fourteenth Amendment's Due Process Clause; or in personal marital, familial, and sexual privacy said to be protected by the Bill of Rights or its penumbras . . . .").

218. *See* Obergefell v. Hodges, 135 S. Ct. 2584, 2597 (2015) ("In addition these liberties extend to certain personal choices central to individual dignity and autonomy, including intimate choices that define personal identity and beliefs.").

219. 381 U.S. 479, 481 (1965) (stating in the context of laws criminalizing the use of birth control that "we are met with a wide range of questions that implicate the Due Process Clause of the Fourteenth Amendment").

220. 388 U.S. 1, 12 (1967) (stating of anti-miscegenation laws that "these statutes also deprive the Lovings of liberty without due process of law in violation of the Due Process Clause of the Fourteenth Amendment").

221. 410 U.S. 113, 153 (1973) ("This right of privacy, whether it be founded in the Fourteenth Amendment's concept of personal liberty and restrictions upon state action, as we feel it is, or . . . in the Ninth Amendment's reservation of rights to the people, is broad enough to encompass a woman's decision whether or not to terminate her pregnancy.").

222. 434 U.S. 374, 384-85 (1978) (stating, with respect to a law that prevented marriage of one who had not paid child support, that "[m]ore recent decisions have established that the right to marry is part of the fundamental 'right of privacy' implicit in the Fourteenth Amendment's Due Process Clause" and that "[t]his Court has long recognized that freedom of personal choice in matters of marriage and family life is one of the liberties protected by the Due Process Clause of the Fourteenth Amendment").

223. 505 U.S. 833, 847 (1992) (stating in the context of a challenge to an anti-abortion statute that "[t]he most familiar of the substantive liberties protected by the Fourteenth Amendment are those recognized by the Bill of Rights" and that "the Due Process Clause of the Fourteenth Amendment incorporates most of the Bill of Rights against the States").

224. 539 U.S. 558, 564 (2003) ("We conclude the case should be resolved by determining whether the petitioners were free as adults to engage in the private conduct in the exercise of their liberty under the Due Process Clause of the Fourteenth Amendment . . . .").

225. 135 S. Ct. 2584, 2597-98 (2015).

education,"[226] matters that Warren and Brandeis would have referred to as "domestic," and matters that, once again, make sense only in the context of individual human beings, not corporations.

The law treats corporations as "persons" deserving of constitutional rights in certain contexts and refrains from doing so in others.[227] For example, corporations have been said to qualify as "persons" within the meaning of the First Amendment.[228] In fact, just recently the Supreme Court clarified that a corporation is a "person" within the context of the Religious Freedom Restoration Act.[229] The Supreme Court has also held, in the exceedingly controversial *Citizens United* decision, that corporations have a First Amendment right to engage in political speech by spending money to support candidates for public office.[230] However, certain "purely personal" constitutional guarantees do not extend to corporations to the degree they extend to natural persons, such as the privilege against self-incrimination and any substantial right to privacy.[231]

Common law sources offer somewhat conflicting information as to whether corporations are "persons" in the context of the Fourteenth Amendment.[232] The Supreme Court has asserted that "corporations can claim no equality with individuals in the enjoyment of a right to privacy."[233] But, the Supreme Court has also asserted that "[c]orporations are persons within the meaning of the Fourteenth Amendment to the Constitution of the United States."[234] However, these cases asserting that corporations are "persons" under the Fourteenth Amendment are doing so in contexts that have nothing to do with privacy.[235] Furthermore, these cases are old, and

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226. Paul v. Davis, 424 U.S. 693, 713 (1976) (noting that these cases demonstrate that "there are limitations on the States' power to substantively regulate conduct").

227. Burwell v. Hobby Lobby Stores, Inc., 134 S. Ct. 2751, 2769 (2014) ("The term 'person' sometimes encompasses artificial persons (as the Dictionary Act instructs), and it sometimes is limited to natural persons.").

228. *See id.* at 2768.

229. *Id.*

230. Citizens United v. Fed. Election Comm'n, 558 U.S. 310, 342 (2010).

231. Beckwith Electric Co., Inc. v. Sebelius, 960 F. Supp. 2d 1328, 1338 (M.D. Fla. 2013), *appeal dismissed* (11th Cir. Sept. 4, 2014).

232. Kentucky Fin. Corp. v. Paramount Auto Exch. Corp., 262 U.S. 544, 550 (1923) (stating that a corporation is a "person" within the meaning of the due process and equal protection clauses of the Fourteenth Amendment).

233. California Bankers Ass'n v. Shultz, 416 U.S. 21, 65 (1974); *accord Sebelius*, 960 F. Supp. 2d at 1338 (M.D. Fla. 2013).

234. Cnty. of Santa Clara v. S. Pac. R.R. Co., 118 U.S. 394, 394 (1886); *accord* First Nat'l Bank of Boston v. Bellotti, 435 U.S. 765, 771 (1978); Covington & L. Tpk. Rd. Co. v. Sandford, 164 U.S. 578, 592 (1896).

235. *See, e.g.*, *Bellotti*, 435 U.S. at 765 (asserting that a corporation is a person entitled to speech protection under the First and Fourteenth Amendments); *Sandford*, 164 U.S.

modern authority has established the better rule. Modern authority suggests that whether or not a particular guarantee is "purely personal" or is unavailable to corporations for other reasons "depends on the nature, history, and purpose of the [particular constitutional] guarantee."[236] "Privacy rights accorded artificial entities are not stagnant, but depend on the circumstances."[237]

The language used in cases questioning what sorts of privacy rights artificial entities have demonstrates that courts are hesitant, if not unable, to rule conclusively on the matter.[238] A case may, for example, cite the proposition that artificial entities are entitled to some degree of privacy right but also assert that state and federal constitutional provisions protecting privacy "simply do[ ] not apply to corporations."[239] The language is contradictory. Still, one thing from these cases is clear: the public attributes of artificial entities reduce the reasonable expectation of privacy to which an entity is entitled, and courts want flexibility in dealing with the issue.[240]

A recent Supreme Court ruling offers guidance as to whether corporations are "persons" in the context of privacy rights: corporations are not traditionally considered "persons," either generally according to the plain meaning of the word, or specifically in the context of privacy rights.[241] In 2011, the Supreme Court agreed in *FCC v. AT&T* that "[w]hen it comes to the word 'personal,' there is little support for the notion that it denotes

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at 592 ("It is now settled that corporations are persons, within the meaning of the constitutional provisions forbidding the deprivation of property without due process of law, as well as a denial of the equal protection of the laws."); *Cnty. of Santa Clara*, 118 U.S. at 394 (asserting that a corporation is a person entitled to equal protection under the Fourteenth Amendment).

236. Browning-Ferris Indus. of Vermont, Inc. v. Kelco Disposal, Inc., 492 U.S. 257, 285 (1989).

237. Ameri-Medical Corp. v. Workers' Comp. Appeals Bd., 50 Cal. Rptr. 2d 366, 384 (Cal. Ct. App. 1996).

238. *See, e.g.*, Hecht v. Super. Ct., 40 Cal. Rptr. 3d 446, 457 (Cal. Ct. App. 2006) ("Like the Supreme Court . . . we need not decide in this case any broad issues of the scope of privacy rights to which an artificial entity or partnership is entitled, as compared to those of the individual partners.") (citations omitted).

239. *Id.* at 456-57 (holding that an LLP had no protectable privacy right in the financial information of a law firm requested for discovery).

240. *See id.* at 456; *see also Ameri-Medical Corp.*, 50 Cal. Rptr. 2d at 384 (stating that privacy rights of artificial entities depend on the circumstances).

241. *See Browning-Ferris*, 492 U.S. at 284 (stating that a corporation is "an artificial being, invisible, intangible, and existing only in contemplation of law" and that corporations are not entitled to "purely personal guarantees whose historic function . . . has been limited to the protection of individuals") (punctuation omitted).

corporations, even in the legal context."[242] In its ruling, the Court asserted that AT&T could not point to a single instance in which any court or statute has referred to a corporation's personal privacy.[243] Instead, numerous treatises indicate that personal privacy does not apply to corporations.[244] Interestingly, the Court seemed comfortable using the terms "artificial entities" and "artificial persons" interchangeably with "corporations,"[245] which has implications that extend to other types of business associations. Although AT&T tried to gain traction from the idea that corporations are entitled to some degree of Fourth Amendment protection, the Court concluded that the case did not require it to rule on the scope of a corporation's privacy rights as a matter of either constitutional or common law, and that AT&T could give no sound reason for abandoning the ordinary meaning of the term "personal privacy."[246] Therefore, with respect to personal privacy rights, corporations do not enjoy a default status as "persons."[247]

Instead, a corporation enjoys the elevated status of personhood only in certain privileged contexts.[248] As alluded to previously, both criminal and civil law recognize that corporations are special entities with special qualities that distinguish them from individual persons.[249] "They are endowed with public attributes. They have a collective impact upon society, from which they derive the privilege of acting as artificial entities. The Federal Government allows them the privilege of engaging in interstate commerce. Favors from government often carry with them an enhanced measure of

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242. FCC v. AT&T Inc., 562 U.S. 397, 405, 409-10 (2011) ("We reject the argument that because 'person' is defined for purposes of FOIA to include a corporation, the phrase 'personal privacy' in Exemption 7(C) reaches corporations as well. The protection in FOIA against disclosure of law enforcement information on the ground that it would constitute an unwarranted invasion of personal privacy does not extend to corporations. We trust that AT&T will not take it personally.").

243. *Id.* at 406.

244. *Id.* at 406-07 (citing RESTATEMENT (SECOND) OF TORTS § 652(I) (1976) ("A corporation, partnership or unincorporated association has no personal right of privacy."); W. PROSSER, LAW OF TORTS § 97, at 641-42 (2d ed. 1955) ("A corporation or a partnership as such can have no personal privacy, although it seems clear that it may have an exclusive right to its name and its business prestige.") (footnotes omitted); *cf.* W. PROSSER, LAW OF TORTS § 112, at 843-44 (3d ed. 1964) ("It seems to be generally agreed that the right of privacy is one pertaining only to individuals, and that a corporation or a partnership cannot claim it as such.") (footnotes omitted); W. PROSSER, LAW OF TORTS § 117, at 815 (4th ed. 1971) (footnotes omitted)).

245. *See AT&T Inc.*, 562 U.S. at 397, 398, 403, 404, 407.

246. *Id.* at 407.

247. *See id.* at 406.

248. *See id.* at 404-05.

249. *See supra* note 149 for discussion of how criminal law treats business entities.

regulation."[250] Accordingly, the nature and purposes of the corporate entity, and the interests it seeks to protect, both determine whether a corporation has a protectable privacy interest.[251]

Two critical factors used by California courts include (1) the strength of the nexus between the corporation's right to privacy and the human individual's right to be left alone and (2) the context in which the controversy arises.[252] As originally suggested by Warren and Brandeis, privacy law still reflects "an elasticity which shall take account of the varying circumstances of each case."[253] A defendant corporation, for example, has no reasonable expectation of privacy with respect to information that allows the government to ensure that corporate behavior complies with the public interest and the law; a corporate taxpayer's right to privacy is outweighed by the assessor's need for information in part because "the nexus between a corporation's right to privacy and an individual's right to be left alone is all but nonexistent."[254]

Other contextual factors that seem potentially important include the size and strength of the artificial entity and whether it is publicly or privately held, the way in which it is regulated, and whether it operates as a monopoly.[255] These factors are important because of their implications regarding the public's right to know.

The larger and more powerful the artificial entity, the greater the impact it potentially has on the public generally,[256] and the more attenuated the

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250. United States v. Morton Salt Co., 338 U.S. 632, 652 (1950); *see* California Bankers Ass'n v. Shultz, 416 U.S. 21, 65-66 (1974); *see also* Roberts v. Gulf Oil Corp., 195 Cal. Rptr. 393, 412 (Cal. Ct. App. 1983) ("Gulf is a corporation which exists at the pleasure of the state. Part of its social contract includes the requirement that it help support the society which permits its very existence.").

251. *Roberts*, 195 Cal. Rptr. at 411.

252. *Id.* at 410-11 (holding that "[w]ithout denigrating the fact that a corporation does enjoy a right to privacy in some circumstances, the assertion that such a right should exist in the circumstances of the instant case is unreasonable").

253. Warren & Brandeis, *supra* note 153, at 215.

254. *Roberts*, 195 Cal. Rptr. at 411-12 (stating, in denying a corporation a privacy right in the context of tax information, that "law-enforcing agencies have a legitimate right to satisfy themselves that corporate behavior is consistent with the law and the public interest"). Notably, California's Constitution expressly provides for a right to privacy, but despite California's progressive stance on privacy rights, the court said, "[t]he constitutional provision simply does not apply to corporations." *Id.* at 406.

255. *See* Richard A. Posner, *Natural Monopoly and Its Regulation*, 21 STAN. L. REV. 548, 548-50 (1969).

256. *See, e.g.*, Animal Legal Def. Fund v. Otter, 118 F. Supp. 3d 1195, 1210 (D. Idaho 2015), *appeal filed* (9th Cir. Dec. 14, 2015) (referring to the meat industry as "powerful" three times in holding the Idaho ag-gag statute unconstitutional); Burwell v. Hobby Lobby Stores, Inc., 134 S. Ct. 2751, 2774 (2014) (alluding to the fact that the size of the

nexus between the individual person's and the entity's right to privacy. Also, the Supreme Court's holding in *Burwell* that corporations are considered persons in the context of the Religious Freedom Restoration Act, for example, was applied narrowly to closely held, as opposed to publicly held, corporations.[257] Although *Burwell* did not involve privacy rights, similar considerations would likely be applicable in the context of determining whether a corporation had a protectable privacy interest.

The highly regulated nature of an industry also indicates that the public likely has a right to know about a particular entity's business activities.[258] Furthermore, when a highly regulated industry or entity operates in a way that minimizes competition and dominates a particular market, as does the meat industry,[259] the public's right to know is perhaps at its strongest because the public has little choice but to deal with the monopoly or quasi-monopoly.[260]

C. *States Unanimously Deny Privacy Rights to Corporations*

The states seem to agree that corporations enjoy a lesser right to privacy than do natural persons.[261] Most states in the United States do not recognize an express constitutional right to privacy, and none of the ones that do extend

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corporation is relevant in saying that "[t]hese cases, however, do not involve publicly traded corporations, and it seems unlikely that the sort of corporate giants to which HHS refers will often assert RFRA claims").

257. *See Burwell*, 134 S. Ct. at 2769. Even though the Hobby Lobby chain has grown into a nationwide chain, the privately held aspect of the company seemed to outweigh the Court's consideration of its size in allowing it to claim personhood. *See id.* at 2765.

258. *See Otter*, 118 F. Supp. 3d at 1207-08 (referring to the meat industry as "heavily regulated" three times in holding the Idaho ag-gag statute unconstitutional); *see also* Larry M. Elison & Deborah E. Elison, *Comments on Government Censorship and Secrecy*, 55 MONT. L. REV. 175, 199 (1994) ("Too often, commissions formed to regulate industries become subservient to the industry they regulate and the so-called public representative in the form of a consumer counsel becomes subservient to both the commission and the industry. The necessity for public observation of regulated industries and regulating agencies is obvious and should not be restricted.").

259. *See Putting Meat on the Table: Industrial Farm Animal Production in America*, *supra* note 65, at 1-2.

260. *See* Elison & Elison, *supra* note 258, at 198-99 (stating that "[c]orporate individual privacy is an oxymoron" and that "[p]ublicly regulated industries . . . are not typical corporations[;] [t]hey are state regulated monopolistic enterprises that are given special support and are expressly controlled by government").

261. *See* Tiffany M. Wagner, *Privacy—the Montana Supreme Court Overturns Twenty-Five Years of Precedent Holding That the Individual Right-to-Privacy No Longer Extends to Corporations Under the Montana State Constitution*, 36 RUTGERS L.J. 1533, 1545 (2005).

it to corporations.[262] Ten states (Alaska, Arizona, California, Florida, Hawaii, Illinois, Louisiana, Montana, South Carolina, and Washington) recognize a constitutional right to privacy, and Montana is the only state that ever extended such a privacy right to artificial entities.[263] In 2003, however, the Montana Supreme Court overturned precedent and held that Montana's constitutional right to privacy extends only to natural human beings.[264] Furthermore, states that recognize an implicit constitutional right to privacy have rejected the idea that corporations should enjoy such protection.[265]

V. CONCLUSION

The historical and modern development of privacy law demonstrates that privacy rights have always been intended, ultimately, to protect the feelings of natural persons, whether it be common law tort privacy, constitutional privacy, informational privacy, or decisional privacy. Although courts seem unable to offer clear guidance as to the exact degree of privacy rights to which an artificial business entity is entitled, the law makes clear that artificial entities are not entitled to the same degree of privacy rights as natural individuals. The law seems willing to extend a nominal privacy interest to artificial entities at best.

This weak privacy interest is the only interest asserted in defense of ag-gag bills that are showing up across the country. When weighed alongside the public's right to know about the food safety issues, animal abuse, anti-competitive and poorly regulated behavior, and environmentally toxic and unsustainable production methods inherent in factory farming, an artificial entity's right to privacy, even one that is legislatively created, will be outweighed by First Amendment considerations every time. Thus, *practically* speaking, it would seem as if businesses engaged in producing America's food supply have no legitimate expectation of privacy in their business activities if the public's right to know is implicated. As *Otter* held, food production simply is not a private matter. Regardless of what form privacy rights take, their extension to artificial entities is not favored under the law.

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262. *Id.*

263. *Id.* at 1536, 1545-46; *accord Privacy Protections in State Constitutions*, NAT'L CONFERENCE OF STATE LEGISLATURES (Dec. 3, 2015), http://www.ncsl.org/research/telecommunications-and-information-technology/privacy-protections-in-state-constitutions.aspx.

264. Great Falls Tribune v. Montana Pub. Serv. Comm'n, 82 P.3d 876, 883 (Mont. 2003).

265. *Id.*